

Robyn Flores, et al. v. R. Myers, Inc., et al., 22CV-0250 (Consolidated with Case No. 23LC-0404)

Hearing: **(1) Plaintiffs’ Motion to Reopen Discovery**
 (2) Plaintiffs’ Motion to Compel Further Responses to Requests for
 Production (Set Three)
 (3) Motion to Compel Resumption of and Further Testimony of the
 Deposition of Goodyear Tire & Rubber Company’s Person Most Qualified

Date: **July 29, 2026**

On May 11, 2022, Robyn Flores (individually and as the personal representative of the Estate of Pyong Yun Song), James Powell, and Chelsea Pudwill (collectively Plaintiffs) filed this wrongful death action against multiple defendants, including Goodyear Tire & Rubber Co. (Goodyear), R. Myers Inc. and David John Edmunson. A First Amended Complaint was filed on April 13, 2023.

Trial of the matter was originally scheduled to begin on April 27, 2026. At a status conference held on March 16, 2026, the scheduled jury trial was vacated. (3/16/26 Minutes.) At a trial setting conference held on March 30, 2026, the Court set the matter for a jury trial beginning on November 16, 2026. (3/30/26 Minutes.)

Plaintiffs now move (1) to reopen fact discovery, (2) for an order compelling Goodyear to provide further responses to Requests for Production of Documents, Set Three, and (3) for an order compelling resumption of and further testimony of Nathan Madison, Goodyear’s person most qualified.

I. MOTION TO RE-OPEN DISCOVERY

As a preliminary matter, the Court notes that Goodyear has filed an opposition to Defendants R. Myers, Inc., dba Myers Drilling’s and David John Edmunson’s (Myers and Edmunson) joinder in Plaintiffs’ motion to reopen fact discovery and Myers and Edmunson have filed a reply to that opposition. The docket, however, contains no filing reflecting any such joinder. Absent Goodyear’s opposition and Myers’ reply referencing it, the Court would have no notice of a joinder. Because the record does not reflect a properly filed joinder, Myers’ request to reopen discovery is denied without prejudice to a renewed motion to reopen discovery.

A. Discussion – Plaintiffs’ request to reopen

The parties’ meet and confer communications include telephone conferences, meet and confer letters on April 13, 2026, and April 16, 2026, an informal discovery conference on April 24, 2026, and follow up meet and confer letters on April 26, 2026 and April 27, 2026. (Ceglio Dec., ¶ 11.) The Court finds the parties’ meet and confer efforts sufficient. (Code Civ. Proc., § 2024.050, subd. (a).)

In support of the motion, Plaintiffs identify the following outstanding discovery issues:

1. Leave to take the depositions of up to five (5) additional witnesses — four (4) named fact witnesses identified in Plaintiffs' April 13, 2026 meet-and-confer letter (Chandra Morrison, Dyontae Graves, William Harris, and Jennifer May), and one (1) additional Person Most Qualified designated by Goodyear regarding the conditions of the Danville Virginia plant during the period between July 1, 2017 through July 1, 2019, including moisture intrusion, roof and HVAC leakage, component-storage conditions, flooding, and foreign-material contamination;
2. Leave to serve one (1) supplemental set of Requests for Production of Documents, limited in scope to subjects arising from the newly-identified defect mechanisms; and
3. Corresponding adjustment of expert-discovery deadlines under California Code of Civil Procedure sections 2034.210 et seq., with all deadlines to be calculated based on the November 16, 2026, trial date.

(Ntc. Mot., p. 2, ll. 17-27.)

Plaintiffs have withdrawn their request to adjust expert-discovery deadlines. (Ceglio Dec., in support of Reply, ¶ 2.) Although the notice of motion does not specify any additional outstanding discovery, further discovery remains necessary, as set forth in Plaintiffs' motions to compel the resumed deposition of Nathan Madison, and to compel further discovery responses, Set Three.

B. Legal Standard

Code of Civil Procedure section 2024.020 subdivision (a) requires discovery proceedings to be completed on or before thirty days before trial, and discovery motions to be heard fifteen days before trial. (Code Civ. Proc., § 2024.020, subd. (a).) A continuance of trial does not automatically reopen discovery proceedings. (Code Civ. Proc., § 2024.020, subd. (b).)

On motion of any party, the court may allow discovery proceedings or discovery motions to be heard after the cut-off dates. (Code Civ. Proc., § 2024.050, subd. (a).) The motion must be accompanied by a meet and confer declaration. (*Id.*) In exercising its discretion whether to grant or deny a motion to reopen, the court shall consider any relevant matter, including the following factors:

- (1) The necessity and the reasons for the discovery.
- (2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier.

(3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party.

(4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.

(Code Civ. Proc., § 2024.050, subd. (b).)

1. The necessity and reasons for the discovery.

Plaintiffs contend that discovery “is necessary to develop and prove the three independent manufacturing-defect mechanisms” that Plaintiffs’ tire failure expert “identified during his late-February 2026 re-inspection – liquid water intrusion, foreign-material contamination, and use of over-aged rubber components. (Currie Decl. ¶¶ 4-5.)” (Mem. P. & A., p. 7, ll. 4-7.) Mr. Currie declares that “as more facts were discovered regarding potential causes of this tire failure, additional questions were raised that require conducting further discovery to answer.” (Currie Decl., ¶ 6.) The discovery Mr. Currie identifies as now needed appears to arise from allegations set out in a second amended complaint filed in 2022 in an Arizona case, *Hughes v. Weyel*, No. CV2022-008639 (*Hughes*). (See Ceglio Dec., ¶ 9, Ex. 2.)

Goodyear argues in opposition that Plaintiffs, having assessed the relative weakness of their claims, now seek to import defect allegations from a separate case concerning a different tire, supported by different physical evidence and a distinct service history.

Plaintiffs respond that “[They] do not rely on *Hughes* to manufacture defect theories. Mr. Currie identified the three mechanisms based on his own physical re-inspection of the subject tire. (Currie Decl. ¶¶ 4–5.) The *Hughes* allegations independently corroborate Mr. Currie’s findings (Ceglio Decl. ¶ 9.)” (Mem. P. & A., p. 9, ll. 10-14.)

On balance, the Court is not convinced that the additional facts underlying Mr. Currie’s findings did not stem in whole or in part from *Hughes*. Regardless, the Court finds that Plaintiffs have shown the necessity of the requested discovery regarding the mechanisms identified during Mr. Currie’s February 2026 re-inspection. Accordingly, this factor weighs in favor of reopening discovery.

2. Diligence of the party seeking the discovery and the reasons that the discovery was not completed.

Goodyear contends that Plaintiffs have not been diligent in obtaining discovery, and argues that Plaintiffs have consistently failed to pursue discovery from Goodyear. Plaintiffs served initial discovery in March 2023. (Henry Dec., ¶ 2.) Then, served additional discovery two years later, in May 2025 seeking “materials related to other claims and lawsuits, but this time Plaintiffs were also seeking depositions and ‘all documents’ regarding those lawsuits. When Goodyear responded on

July 22, 2025, it provided the same limitation on scope and produced documents from the lawsuits within that scope that were relevant to establishing substantial similarity at trial. Plaintiffs accepted these responses as-served.” (*Id.*, ¶ 4.) Goodyear further represents that for the first time on December 5, 2025, three years after initiation of this case, Plaintiffs sought to depose its person most qualified. (*Id.*, ¶ 5.)

Goodyear also contends that Plaintiffs have not been diligent in pursuing discovery regarding Plaintiffs’ “new” defect theories. According to Goodyear, “Plaintiffs either knew about these alleged new theories when they served their requests for production, set three on February 11, 2026, which Plaintiffs have argued pertain to those new theories, or when their expert Bruce Currie re-examined the tire at issue on February 24, 2026.” (Opp., p. 7, ll. 20-22.)

The Court finds that Plaintiffs failed to act diligently with respect to their asserted “new” defect theories. Plaintiffs attempt to show that the need for discovery arose with their expert’s reinspection in February 2026. However, as noted, the expert’s analysis appears, at least in part to have been informed by *Hughes*, which was filed in 2022. It remains unclear when Plaintiffs learned of *Hughes*, and Plaintiffs offer no timeline clarifying that point. Their silence on when they discovered *Hughes* supports the inference that the “new” theories were introduced late and without the requisite diligence.

Plaintiffs’ attempt to tie the timing solely to the February 2026 reinspection is questionable in light of their expert’s apparent reliance on *Hughes*. This factor weighs against reopening discovery.

3. Any likelihood that permitting the discovery will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party.

Goodyear argues that “[i]f the Court grants Plaintiffs’ motion, there will be no possible way for the case to go to trial on the November 2026 trial date.” (Opp. p., 14, ll. 18-19.) Goodyear further notes that “Plaintiffs have asked to serve an unknown number of additional requests for production on Goodyear for an incredibly broad range of subjects.” (*Id.*, p. 15, ll. 12-13.) Plaintiffs contend, on the other hand, that reopening discovery will not interfere with the upcoming trial, and that discovery “can readily be completed well before the new 30-day pretrial discovery cutoff in mid-October 2026.” (Mem. P. & A., p. 9, ll. 24-25.)

Given the discovery Plaintiffs propose and the approximately two and one-half months remaining to complete discovery, the Court finds a substantial likelihood that reopening discovery, could jeopardize the November 2026 trial date and disrupt the trial calendar absent court-imposed limitations. Plaintiffs provide no information regarding the supplemental requests for production they intend to propound, including their number or subject matter. This factor weighs in favor of reopening and limiting discovery.

4. The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.

The initial trial was scheduled for April 27, 2026, and was continued for six months and twenty days, to November 16, 2026. The current trial setting affords some flexibility in addressing limited discovery. The Court finds this factor supports granting the motion.

C. Conclusion

The Court finds that under the totality of the circumstances, Plaintiffs have demonstrated the need for limited additional discovery but have not demonstrated diligence. Trial is set to begin on November 16, 2026, leaving approximately two and a half months to complete any additional discovery.

In view of the limited time remaining, and the policy favoring disposition on the merits, the Court will reopen discovery to permit the deposition of Defendant Goodyear's person most qualified regarding "Danville-plant conditions during the period July 1, 2017, through July 1, 2019, including moisture intrusion, roof and HVAC leakage, component-storage conditions, flooding, and foreign-material contamination." (Not. Mot., p. 2, ll. 20-22; see *Cubit v. Ridgecrest Community Hospital* (1987) 194 Cal.App.3d 1552, 1566 ["the policy of disposing of actions on their merits is more powerful than the policy seeking to promote prompt prosecution"].) No time limitation is imposed.

Additionally, Plaintiffs are permitted to depose the four named witnesses, namely: Chandra Morrison, Dyontae Graves, William Harris, and Jennifer May. One supplemental request for production will be permitted.

II. MOTION TO COMPEL FURTHER RESPONSES TO AMENDED REQUESTS FOR PRODUCTION (Set Three)

On February 11, 2026, Plaintiffs served Amended Requests for Production, Set Three on Goodyear. (Ceglio Dec., ¶ 4, Ex. 1.) Goodyear responded on March 18, 2026. (*Id.*, ¶ 5, Ex. 7.) Plaintiffs filed the motion to compel further responses on May 4, 2026 – after the March 30, 2026, discovery cutoff.

A. Meet and Confer

A motion to compel further response to a demand for inspection shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a).)

The parties' meet and confer communications include telephone conferences, meet and confer letters on April 13, 2026, and April 16, 2026, an informal discovery conference on April 24, 2026, and follow up meet and confer letters on April 26, 2026 and April 27, 2026. (Ceglio Dec., ¶ 15.) The Court finds the parties' meet and confer efforts sufficient.

B. Legal Standard

"Unless otherwise limited by order of the court ... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.)

The Court first must consider whether Plaintiffs have shown good cause for production of further documents, and if such good cause is established, then the burden is on Defendant to justify its objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98; Code Civ. Proc., § 2031.310, subd. (b)(1).)

C. Discussion

The Court first addresses the following argument advanced by Goodyear. Goodyear contends that the materials Plaintiffs seek fall outside the permissible scope of discovery; and, Goodyear argues that Plaintiffs have not demonstrated good cause for the requested production because the requests are directed to Plaintiffs' "new" theories, which Goodyear asserts are unsupported and rely on Mr. Currie's conclusory statements and allegations from the *Hughes* complaint. Goodyear further argues that the requests are overbroad in time, spanning multiple years, even though the tire at issue was manufactured during a single week in 2018. Goodyear additionally contends that Plaintiffs have not demonstrated a necessity for any additional confidential and propriety materials.

The right to discovery in California is broad, in order to prevent gamesmanship and surprise at trial. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 535; *Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal.2d 355, 376, superseded on other grounds.) Parties may obtain discovery on any non-privileged matter that is relevant to the issues involved in the action. (Code Civ. Proc., § 2017.010.) Information should be regarded as "relevant if it might reasonably assist a party in evaluating the case, preparing for trial or facilitating settlement." [internal quotation marks omitted] (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.)

Plaintiffs seek information and documents concerning whether the manufacturing conditions at the Danville, Virginia Plant, as set forth in *Hughes* caused manufacturing defects in the subject tire. The Court finds that Plaintiffs have sufficiently demonstrated the need for the subject discovery. Because this information is directly relevant to Plaintiffs' claims, the Court finds Plaintiffs have shown good cause for the discovery. However, given the impending trial, and the limited time remaining for discovery, the Court agrees with Goodyear that the scope of production should be limited. Accordingly, the Court limits such production, as specified herein.

The Court next addresses two issues that recur throughout Goodyear's responses.

First, Goodyear asserts the trade secret privilege as a basis for withholding responsive documents and information to the extent they contain trade secrets. The Evidence Code provides for a trade secret privilege: "[i]f he or his agent or employee claims the privilege, the owner of a trade secret has a privilege to refuse to disclose the secret, and to prevent another from disclosing it, if the allowance of the privilege will not tend to conceal fraud or otherwise work injustice." (Evid. Code, § 1060.) A party invoking a trade secret privilege bears the burden of submitting evidence demonstrating the existence of a trade secret. (*Bridgestone/Firestone, Inc. v. Superior Court* (1992) 7 Cal.App.4th 1384, 1393.)

Goodyear appears to have withheld documents on the grounds they contained trade secrets, but without serving a privilege log, without making the requisite showing in its declaration to support the claim for trade secrets, and without seeking a protective order. A party seeking a protective order restricting disclosure of trade secrets must provide an affidavit or declaration: listing the declarant's qualifications to give an opinion; identifying the alleged trade secret; identifying the documents disclosing the trade secret; and presenting evidence that the secret qualifies as a "trade secret." (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026), ¶¶ 8:1452, 8:1456.8.)

Here, Goodyear relies on the Declaration of Patrick Marks in support of its opposition. Although Mr. Marks's declaration discusses the importance of keeping trade secrets confidential, and the measures Goodyear takes to protect confidential information, it does not identify the specific trade secret at issue or the documents that contain evidence of the secret. Because Goodyear has not met its initial burden to establish that the withheld information constitutes a trade secret under Evidence Code section 1060, the trade secret objection is overruled.

Second, Goodyear claims that Requests 22, 24, 25, 26, and 29 are duplicative of previously propounded requests. On that basis, Goodyear argues that Plaintiffs are barred from bringing this motion regarding those Requests. While the Court acknowledges the rule prohibiting repeated propounding of the same discovery request after the 45-day period in which a motion to compel may be made has lapsed, Goodyear does not demonstrate that these Requests were previously propounded. (*Professional Career Colleges Magna Institute, Inc. v. The Superior Court of Riverside County* (1989) 207 Cal.App.3d 490, 494 ["it would be an absurdity to say that a party who fails to meet the time limits of section 2030 may avoid the consequences of his delay and lack of diligence by propounding the same question again"].) Therefore, Goodyear's objections that these Requests are duplicative of requests previously propounded are overruled. (*Fairmont Insurance Company v. Superior Court* (2000) 22 Cal.4th 245, 255.)

The fifteen Requests (Nos. 21-29 and 31-36) at issue are grouped into the following category of documents: (1) design documents (Request No. 21); (2) manufacturing, testing, and safety determination (Request Nos. 22, 24, 25); (3) training records (Request No. 23); (4) other lawsuits

and depositions (Request Nos. 26, 31-36); (5) document retention policies (Request No. 27); (6) Communications (Request No. 28); and (7) documents underlying Goodyear's discovery responses (Request No. 29).

Request for Production No. 21: This Request seeks documents regarding the design of the subject tire and the subject tire line. Goodyear argues in its opposition that it is unclear why this design documentation is required when Plaintiffs' expert does not specify the need for these documents. Plaintiffs clarify that they "do not contend that further production of design documents is required." (Reply, p. 11, l. 1.) Accordingly, no further production is required regarding this Request.

Request for Production Nos. 22, 24, 25: These Requests seek all documents and communications concerning the subject tire and tire line's manufacturing processes, related testing, inspections, imaging, and the basis for determining the subject tire was safe for use before installation on a motor vehicle.

Goodyear objects to providing information beyond the scope of what it has already provided, and on the basis that the Requests are duplicative, vague and ambiguous, and therefore unduly burdensome and harassing. Goodyear also objects that the Requests are overly broad and not reasonably limited to the facts, circumstances or case allegations, and objects to the extent these requests seek confidential/proprietary or trade secret material without a showing of relevance or reasonable necessity.

The Court overrules Goodyear's objections. The Court limits such production to "non-serialized quality records for the production run as a whole (batch and shift-level nonconformance reports for tires date-coded for the 26th week of 2018, water-intrusion and HVAC records, and tarp-deployment directives)." (See Reply, p. 11, ll. 13-15.) Goodyear is compelled to provide a further response and produce all responsive documents, as limited. (Code Civ. Proc., §§ 2031.220, 2031.230.)

Request for Production No. 23: This Request seeks documents concerning training records and training of personnel who manufactured, tested, inspected, or imaged the subject tire. Goodyear makes various objections, such as irrelevant, vague and ambiguous, overbroad and unduly burdensome. The objections are overruled.

Goodyear claims that providing the requested information "would be extremely time-consuming and require substantial effort." (Marks Dec., ¶ 20.) Goodyear also explains that it is not possible to identify the tire builders and inspectors of the tire, and to provide information for all tire builders and inspectors at the subject plant would require Goodyear to gather and review over 50 employee files. (*Ibid.*)

Plaintiffs suggest the following limitation "personnel with responsibility for tire building, component handling, and inspection functions for the tire line at issue (G296 MSA, size 425/65R22.5) and date-coded from the 26th week of 2018, plus a reasonable window of two

months before and after that week.” (Reply, p. 11, ll. 25-28.) Goodyear shall be compelled to provide a further response and produce all responsive documents, but limited to personnel with responsibility for tire building, component handling, and inspection functions for the tire line at issue (G296 MSA, size 425/65R22.5) and date-coded from the 26th week of 2018.

Request for Production Nos. 26, 31-36: This Request seeks documents regarding other lawsuits and depositions from January 1, 2011, to the present.

Goodyear makes various objections: duplicative, irrelevant, vague and ambiguous, overly broad and unduly burdensome. Goodyear also objects on the basis the requests are not reasonably limited to the facts, circumstances or case allegations, and objects to the extent this request seeks disclosure of information protected by a privilege, confidential/proprietary or trade secret material without a showing of relevance or reasonable necessity.

Goodyear contends that testimony of employees from the *Kogl* case¹ is not relevant to any design or manufacturing issue in this case. Specifically, Goodyear’s Product Analysis Engineer declares that “[t]he tire involved in *Kogl* was a 11R22.5 Kelly KLS Armorsteel ECD tire that was designed for a different application, manufactured to different material and construction specifications than the Tire at Issue, assembled on a different tire building machine than the Tire at Issue, and made almost two years before the Tire at Issue.” (Marks Dec., ¶ 26.) Plaintiffs seek testimony regarding conditions at the Danville, Virginia plant, which may include the time period when the subject tire was manufactured. Given the broad scope of civil discovery, the Court will direct Goodyear to produce the requested materials from the *Kogl* case. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541 [“In the absence of [a] contrary court order, a civil litigant’s right to discovery is broad”].)

Goodyear’s objections are overruled. Goodyear is ordered to provide a further response and produce all responsive documents limited to the *Kogl* and *Hughes* cases. Additionally, if Goodyear withheld any responsive documents on the grounds of a privilege, Goodyear shall provide a privilege log. (Code Civ. Proc., § 2031.240, subd. (c)(1).) Any confidential documents shall be subject to the Stipulated Confidentiality Agreement and Protective Order entered on March 21, 2025.

Request for Production No. 27: This Request seeks documents concerning retention policies and procedures related to claims, lawsuits, or legal actions involving the subject tire line from January 1, 2011, to the present.

Goodyear makes various objections: duplicative, irrelevant, vague and ambiguous, overly broad and unduly burdensome. Goodyear specifically argues, “Plaintiffs’ Request for Production, No. 08, served in their request for production, set one to Goodyear sought: ‘Produce all DOCUMENTS of, concerning, or relating to YOUR record keeping policy from September 1, 2016 to present.’ While that request was broader, it would have been inclusive of the documents being sought by

¹ *Kogl v. The Goodyear Tire & Rubber Co.*, (D. Colo.), Case No. 1:20-cv-01193-CMA-NYW. (Ceglio Dec., ¶ 20, Ex. 6.)

Plaintiffs' current request. Goodyear's response to Request No. 8 was served on July 19, 2023, and Plaintiffs never met and conferred or filed a motion to compel. Plaintiffs' effort at a redo is untimely." (Def.'s Resp. to Sep. Stmt., p. 32, ll. 7-12.)

Although Request No. 27 is similar to the 2023 request, the Court does not find the Request to be duplicative. Goodyear is compelled to provide a further code-compliant response and produce all responsive documents. (Code Civ. Proc., §§ 2031.210, subd. (a)(1)-(2), 2031.220.) If Goodyear is unable to comply with this Request, its response will comply with Code of Civil Procedure section 2031.230. Additionally, if Goodyear withholds any responsive documents on the grounds of a privilege, Goodyear shall provide a privilege log. (Code Civ. Proc., § 2031.240, subd. (c)(1).)

Request for Production No. 28: This Request asks for documents regarding all communications regarding the subject tire with anyone other than Goodyear's attorneys.

Goodyear asserted various objections and responded that "[a]fter a reasonable search, GOODYEAR has not located any responsive documents from before this lawsuit was filed." (Def.'s Resp. to Sep. Stmt., p. 32, ll. 24-25.) Goodyear's response to this Request is improperly limited. Goodyear is ordered to provide a further code-compliant response. (Code Civ. Proc., §§ 2031.210, subd. (a)(1)-(2), 2031.220.) If Goodyear is unable to comply with this Request, its response shall comply with Code of Civil Procedure section 2031.230. Additionally, if Goodyear withholds any responsive documents on the grounds of privilege, Goodyear shall provide a privilege log. (Code Civ., Proc., § 2031.240, subd. (c)(1).)

Request for Production No. 29: This Request seeks all documents relating to Goodyear's responses to written discovery, including but not limited to all documents upon which Goodyear relied to prepare those discovery responses.

Referring to Plaintiffs' contention that further responses are required, Defendant argues that Plaintiffs seek either (1) documents consulted but deemed nonresponsive to their other requests, or (2) attorney notes used in preparing the responses. Goodyear contends that either interpretation renders this request improper. The Court agrees. No further response is required.

III. MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF PERSON MOST QUALIFIED FOR THE GOODYEAR TIRE COMPANY

Plaintiffs and Goodyear scheduled the deposition of Goodyear's Person Most Knowledgeable (PMK), for March 18, 2026. The notice of taking deposition "identified nine categories for examination and called for production of documents responsive to nine corresponding Requests for Production." (Ceglio Dec., ¶ 3.) On March 13, 2026, Goodyear served written objections and responses to the notice, and designated Nathan Madison as the person most qualified on categories 2, 3, 4, and a portion of 5. (*Id.*, ¶ 4, Henry Dec., ¶ 11, Ex. 8 [Deposition of Nathan Madison], p. 13, ll. 4-6.) Mr. Madison's deposition commenced at 8:00 a.m. Pacific Time (11:00 a.m. Eastern Time). (*Id.*, ¶ 5.)

“Before the deposition began, Mr. Henry notified Plaintiffs’ counsel that he required a hard stop at 1:00 p.m. Pacific Time (4:00 p.m. Eastern Time) due to his personal return flight schedule. To accommodate that demand, Plaintiffs agreed to start the deposition at 8:00 a.m. Pacific. The deposition adjourned at 3:57 p.m. Eastern Time (12:57 p.m. Pacific)—approximately four hours on the record.” (Ceglio Dec., ¶ 5.)

Plaintiffs filed this motion seeking an order compelling Goodyear to produce its designated person most qualified, Nathan Madison, to resume and complete his deposition testimony on the categories noticed and compelling Goodyear to produce documents in response to Request for Production Nos. 1-9. Because Requests for Production Nos. 1-9 are identical to those in Plaintiffs’ third set of Requests for Production, which are already at issue in Plaintiffs’ motion to compel requests for production, the request to compel production of documents in this motion is denied as moot. (See Opp., p. 15, ll. 16-18.)

In opposition, Goodyear argues Plaintiffs’ questioning was repetitive, confusing, and outside the witness’s designation, justifying defense counsel’s limited instructions not to answer after Plaintiffs’ counsel refused to meet and confer on the nature of the questions and basis for their inquiry. To prevent future abuse, Goodyear urges hard time limits (no more than five hours if any further testimony is allowed), and advance production of any undisclosed deposition exhibits at least five business days beforehand.

“Deposition examinations of a witness by all counsel other than the witness’s counsel of record must be limited to 7 hours of total testimony, unless a court order or case management order provides otherwise, or an exception in CCP § 2025.290(b) applies. CCP § 2025.290(a). The court must allow additional time, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination.” (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. 2025) § 5.84A.) The 7-hour limitation does not apply “[t]o any deposition of a person who is designated as the most qualified person to be deposed under CCP §2025.230.” (*Ibid.*)

Code of Civil Procedure section 2025.610, subdivision (a) states:

(a) Once any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent.

(Code Civ. Proc., § 2025.610, subd. (a).)

However, because Code of Civil Procedure section 2025.610, subdivision (a) “applies to natural persons, multiple depositions of organizations are not prohibited.” (2 Witkin, Cal. Evidence (6th ed. 2026) § 42.)

The parties agree Mr. Madison was designated as Goodyear's person most qualified on categories 2, 3, 4, and a portion of 5, and that he was deposed for approximately four hours. The Court will not impose a time limit on the continued deposition for the person most qualified and will not require Plaintiffs to provide exhibits to the parties in advance of the deposition. (Code Civ. Proc., § 2025.290, subd. (b)(5).)

ORDER

In view of the limited time remaining prior to trial, and the policy favoring disposition on the merits, the Court will reopen discovery to permit the deposition of Defendant Goodyear's person most qualified regarding "Danville-plant conditions during the period July 1, 2017, through July 1, 2019, including moisture intrusion, roof and HVAC leakage, component-storage conditions, flooding, and foreign-material contamination." (Not. Mot., p. 2, ll. 20-22; see *Cubit v. Ridgecrest Community Hospital* (1987) 194 Cal.App.3d 1552, 1566 ["the policy of disposing of actions on their merits is more powerful than the policy seeking to promote prompt prosecution"].) No time limitation is imposed.

Additionally, Plaintiffs are permitted to depose the four named witnesses, namely: Chandra Morrison, Dyontae Graves, William Harris, and Jennifer May. One supplemental request for production will be permitted.

Myers' and Edmunson's request to reopen discovery is denied without prejudice to a renewed motion to reopen discovery.

Plaintiffs' motion to compel further responses to requests for production is granted in part. Goodyear is ordered to provide full and complete, verified further responses, without objections to Plaintiffs' Request for Production of Documents, Set Three, as set forth in this ruling, **within 20 days of service of notice of this ruling**. To the extent Goodyear asserts that any documents are privileged, the supplemental responses should identify those documents and list them on a privilege log. (Code Civ. Proc., § 2031.240, subd. (c)(1).) Any confidential documents shall be subject to the Stipulated Confidentiality Agreement and Protective Order entered on March 21, 2025.

Plaintiffs' motion for further deposition testimony of Goodyear's person most qualified is granted in part. Plaintiffs' motion is denied as moot as to Request for Production of Documents Nos. 1-9. The Court will not impose a time limit on the continued deposition for the person most qualified and will not require Plaintiffs to provide exhibits to the parties in advance of the deposition. (Code Civ. Proc., § 2025.290, subd. (b)(5).)